



**DEVELOPMENT AGREEMENT
GOVERNING DEVELOPER'S OBLIGATIONS IN**

**Qwest Wireless (CEMEX Inc.) SU/SSDP
(Boulder County Land Use Docket #SU-01-08)**

THIS AGREEMENT is made on this 3rd day of December, 2001, by and between the Board of County Commissioners of Boulder County, Colorado ("the County"), and **Qwest Wireless, LLC**, a Delaware limited liability company ("the Developer").

WHEREAS, the Developer has submitted to the County a special use request to install a wireless telecommunication facility ("the Development") on the CEMEX Cement Plant ("the Plant"), which the County has approved in Land Use Docket #SU-01-08 ("the Docket"), as set forth in County Resolution **No. 2001-144** adopted October 2, 2001, which is attached to and incorporated into this Agreement as Exhibit A; and

WHEREAS, the County has fully considered the Development and the improvements of the land proposed in the Docket, and has made its approval expressly contingent on the Developer's agreement to the matters set forth below; and

WHEREAS, the County has determined that this Agreement is consistent with the Boulder County Comprehensive Plan, the applicable County regulations, and the County's approval of the Development as set forth the Docket; and

WHEREAS, the County and the Developer acknowledge and agree that the matters set forth herein are reasonable requirements for the County to impose as part of its approval of the Docket, and that such matters are necessary to protect and promote the public health, safety, and welfare.

NOW, THEREFORE, in consideration of the mutual covenants herein contained and the County's approval of the Development as set forth in the Docket, the Developer and the County agree as follows:

1. Description of Development

The Development approved herein consists of the following: **an unstaffed wireless communication facility capable of mounting up to nine (9) antennae onto the parapet of the Plant, and up to**



four (4) equipment cabinets sitting on the roof of the Plant, along with associated cabling and equipment, all as further described in the official file for the Docket. The Development shall comply and be consistent with the terms, conditions, and commitments of record for the Docket, and with the site plan which is attached to and incorporated into this Agreement as Exhibit B.

2. Other Conditions of Approval/Impacts Fees

The Developer shall comply with all other terms, conditions, and commitments of record of the County's approval of the Development, as set forth in the Docket. In addition, the Developer shall participate in the applicable road impact fee fund, if and when the County adopts a county-wide road impact fee system, so long as the assessment of the road impact fee is prior to the issuance of building permits pursuant to this Agreement.

3. Building Permits

The County shall not issue any building permits or related land use permits (such as grading permits) for the Development to proceed, until the parties have executed and recorded this Agreement; the Developer has satisfied all conditions of the County's approval of the Development which are prerequisite to work on the Development commencing; and the Developer has met all other applicable requirements of the Boulder County Land Use Code and Building Code for the requested permit.

4. Vested Right

In consideration of the above conditions and covenants, the County agrees to grant a vested right for the Development to proceed pursuant to the terms of this Agreement. The vested right granted herein shall have a term of three (3) years after the date of adoption of Exhibit A hereto (the "Vesting Period"), subject to the provisions for modification and termination contained herein. During the Vesting Period, any subsequent regulations enacted by the County shall be applicable to the Development if necessary to protect the health and safety of the inhabitants of Boulder County, or if general in nature and applicable to all properties subject to County land use regulation.

The Developer may request an extension of the Vesting Period, in accordance with the Boulder County Land Use Code and applicable state law. The rights granted herein shall be terminated if the County reasonably determines that the Developer is not in good faith complying with



the terms of this Agreement after providing the Developer written notice of such non-compliance and a reasonable period of time to cure such non-compliance.

5. Amendment/Waiver

This Agreement may be canceled or amended only with the mutual consent of the parties. The County shall have the right to waive its rights to enforce this Agreement, without obtaining the consent of any other entity or person, provided that any waiver shall be made in writing to be effective.

However, any cancellation, amendment, or waiver, which represents a material modification of the County's approval of the Development, as set forth in the Docket, shall require a public hearing and approval according to applicable County land use regulations.

6. Enforcement

The County may conduct a periodic review of the Development as necessary to assure compliance with this Agreement. This right includes the right to enter upon the property included within the Development at any time, without prior notice, to inspect for compliance with the terms of this Agreement. Notwithstanding the foregoing, the County will use reasonable efforts, when practicable, to notify the Developer in advance of any entry onto the Development. The County or any purchaser of any land, subject to the requirements of this Agreement, shall have the authority to bring an action in the Boulder District Court to compel the enforcement of this Agreement and the restrictions and requirements herein provided for, and to seek other relief as may be authorized by law.

7. Transfer of Property/Annexation

This Agreement is intended to provide for the orderly development of the property included in the Docket in accordance with the terms hereof. Those owners of the property or any portion of the property who obtain title subsequent to the date of this Agreement, or persons holding under the Developer or subsequent owners, shall be entitled to construct and use the Development by complying with the terms hereof, and shall also be bound by all applicable terms and obligations of this Agreement. If the Development property becomes included within the boundaries of any city or town, the County's right to enforce this Agreement shall automatically pass to the governing body of the city or town.

8. Notation and Recordation

The Developer shall file this Agreement for recording with the County Clerk and Recorder, along with any plans or other documents required as part of the County's approval of the Development.

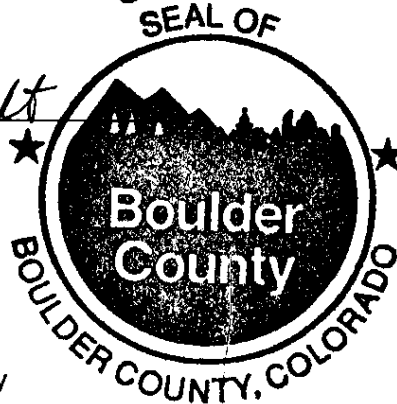
IN WITNESS WHEREOF, the parties have hereunto set their hands and seals this 3rd day of December, 2001.

BOULDER COUNTY

Jana L. Mendez
CHAIR, BOULDER COUNTY
BOARD OF COUNTY COMMISSIONERS

ATTEST:

Doreen M. Ashcraft
CLERK OF THE BOARD



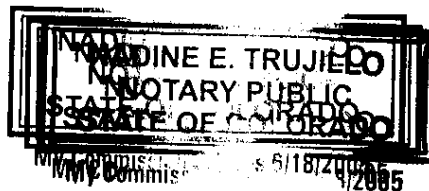
DEVELOPER

Qwest Wireless, L.L.C., a
Delaware limited liability company

By: [Signature]
Its: Senior Vice President
Operations & Engineering

STATE OF COLORADO)
COUNTY OF Arapahoe)

ss.



The foregoing instrument was acknowledged before me this 3rd day of December, 2001 by Stephen W. Morgan as Senior V.P. Operations & Engineering of Qwest Wireless, LLC, a Delaware limited liability company.

Notary Public Nadine E. Trujillo
My commission expires 6-18-05

EXHIBIT A

RESOLUTION 2001-144

A RESOLUTION CONDITIONALLY APPROVING BOULDER COUNTY LAND USE DOCKET #SU-01-08 ("QWEST WIRELESS/CEMEX, INC. SU/SSDP"): A SPECIAL USE REVIEW WITH ASSOCIATED SITE SPECIFIC DEVELOPMENT PLAN REQUEST FOR THE INSTALLATION AND OPERATION OF A TELECOMMUNICATIONS FACILITY EXCEEDING THE HEIGHT LIMITATION OF THE ZONING DISTRICT IN WHICH THE FACILITY IS LOCATED, ON PROPERTY LOCATED AT 5134 UTE HIGHWAY, EAST OF LYONS ON THE SOUTH SIDE OF UTE HIGHWAY, AND EAST OF NORTH FOOTHILLS HIGHWAY/U.S. HIGHWAY 36, IN SECTION 28, T3N, R70W

WHEREAS, Qwest Wireless ("Applicant") has requested approval for a special use permit, with associated site specific development plan, to install a minimum of two antennas (with the possibility of a third) on three different sectors (a total of nine), mounted to the sides of the cement plant owned by Cemex, Inc., along with two equipment cabinets (with the possibility of two additional equipment cabinets) on the roof of the cement plant, all for a telecommunications facility on the Cemex, Inc. property which is located as described in the caption to this Resolution, above ("the Subject Property"), in the General Industrial Zoning District in unincorporated Boulder County; and

WHEREAS, the above-described request was processed and reviewed as Boulder County Land Use Docket #SU-01-08 ("the Docket"), all as further described in the Boulder County Land Use Department Planning Staff's Memorandum and written recommendation to the Boulder County Board of County Commissioners ("the Board") dated October 2, 2001, with its attachments ("the Staff Recommendation"); and

WHEREAS, on August 15, 2001, the Boulder County Planning Commission ("the Planning Commission") held a duly-noticed public hearing on the Docket, and recommended conditional approval of the Docket to the Board; and

WHEREAS, on October 2, 2001, the Board held a duly-noticed public hearing on the Docket ("the Public Hearing"), at which time the Board considered the Staff Recommendation and the recommendation of the Planning Commission, and also considered documents and testimony presented by the County Land Use Department Staff, representative of the Applicants, and a member of the public; and



WHEREAS, based on the Public Hearing, the Board finds that the Docket meets the criteria for special use approval set forth in Article 4 of the Boulder County Land Use Code ("the Land Use Code"), and can be approved, subject to the conditions stated below, and finds further that the Docket, with the submission of the standard development agreement, meets the criteria in the Land Use Code for a site-specific development plan, subject to the conditions stated below.

NOW, THEREFORE, BE IT RESOLVED that the Docket is hereby approved, on the basis set forth in this Resolution, above, and subject to the following conditions:

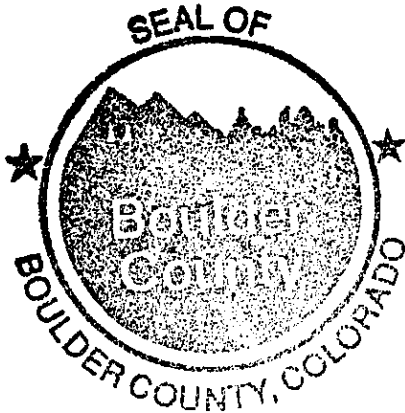
1. The antennas and all support structures and wiring conduit shall be mounted as flush to the silo wall as possible, and painted to match the existing structure.
2. The Applicant shall submit a Development Agreement to be reviewed and approved by the County Attorney and Land Use staff prior to recording. The vested right approved for the Docket shall have a term of three years beginning on the date of adoption of this Resolution as set forth below.
3. The Applicant shall agree to allow collocation of other telecommunication providers if reasonable accommodations can be reached and subject to approval according to the applicable County land use review process. The lease for the proposed facility shall be reviewed by the County Attorney to assure that collocation on the silo will be permitted by the property owner.
4. This approval shall be reviewed in seven years after the date of adoption of this Resolution, as stated below, and at seven-year intervals thereafter, to consider evolving telecommunication technologies and alternatives.
5. The Applicant shall be subject to the terms, conditions, and commitments of record for the Docket.

A motion to approve the Docket, as stated above, was made by Commissioner Danish, seconded by Commissioner Stewart, and passed by a 3-0 vote.



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ADOPTED this 1st day of November, 2001, nunc pro tunc
the 2nd day of October, 2001.



BOARD OF COUNTY COMMISSIONERS
OF BOULDER COUNTY:

Jana L. Mendez
Jana L. Mendez, Chair

Paul D. Danish
Paul D. Danish, Vice Chair

Ronald K. Stewart
Ronald K. Stewart, Commissioner

ATTEST:

Amber M. Ashcraft
Clerk to the Board

NO.	DATE	REVISION
1	12/14/2001	ISSUED FOR THE PROJECT
2	12/14/2001	ISSUED FOR THE PROJECT
3	12/14/2001	ISSUED FOR THE PROJECT
4	12/14/2001	ISSUED FOR THE PROJECT
5	12/14/2001	ISSUED FOR THE PROJECT
6	12/14/2001	ISSUED FOR THE PROJECT
7	12/14/2001	ISSUED FOR THE PROJECT
8	12/14/2001	ISSUED FOR THE PROJECT
9	12/14/2001	ISSUED FOR THE PROJECT
10	12/14/2001	ISSUED FOR THE PROJECT

Qwest.
Wireless



Boulder County Clerk, CO AG

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D 0.00

SITE INFORMATION	CEMEX CEMENT P 5125 W. 10TH AVE LYONS, COLORADO 80540
DESIGN TYPE	BLD-021A
ROOF TOP EQUIP AND ANTENNAS	
SHEET TITLE	SITE PLAN AND ENLARGED SITE 1
SHEET NUMBER	Z-2

Z-2

Sheet 22 of 22

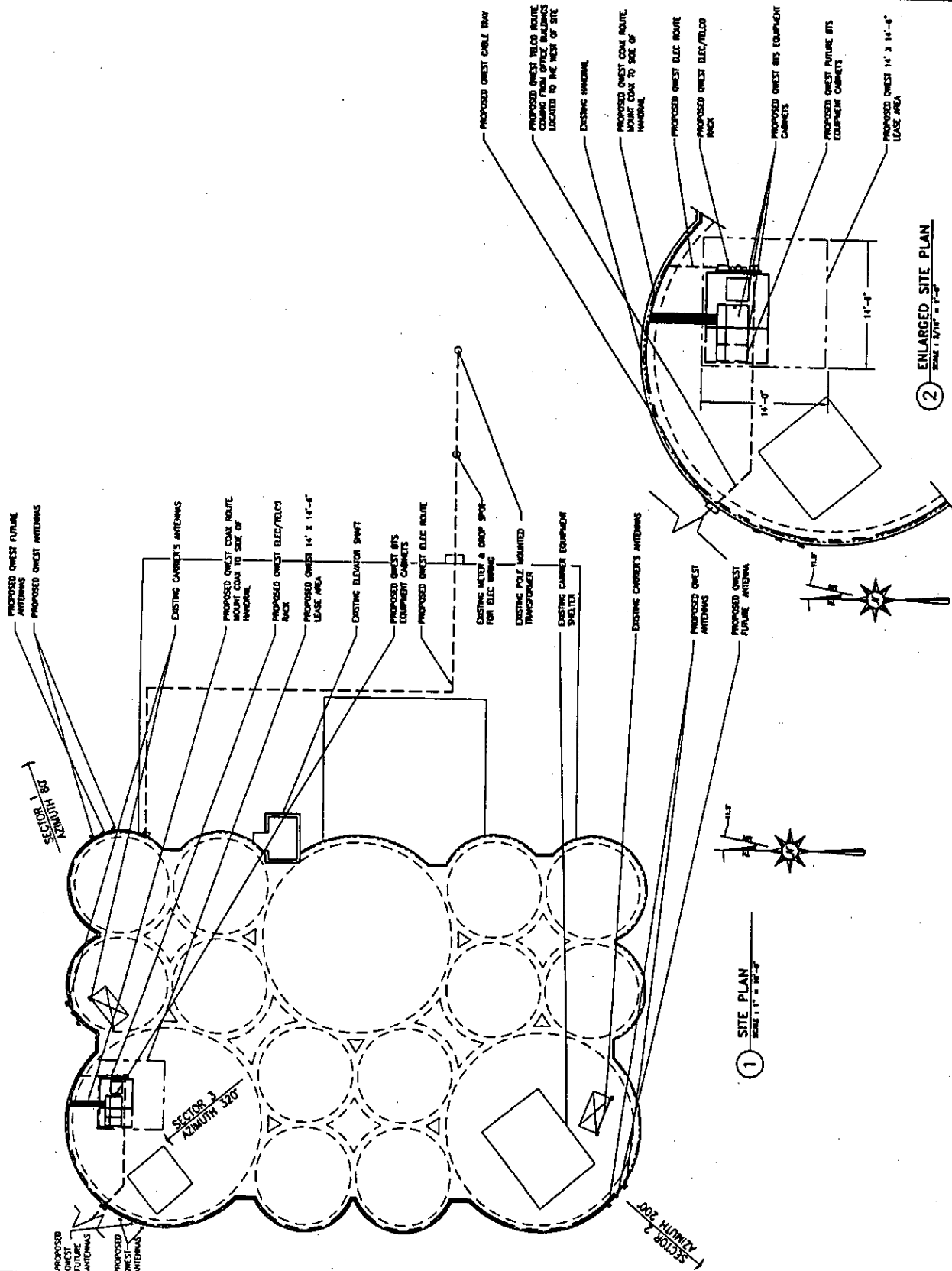


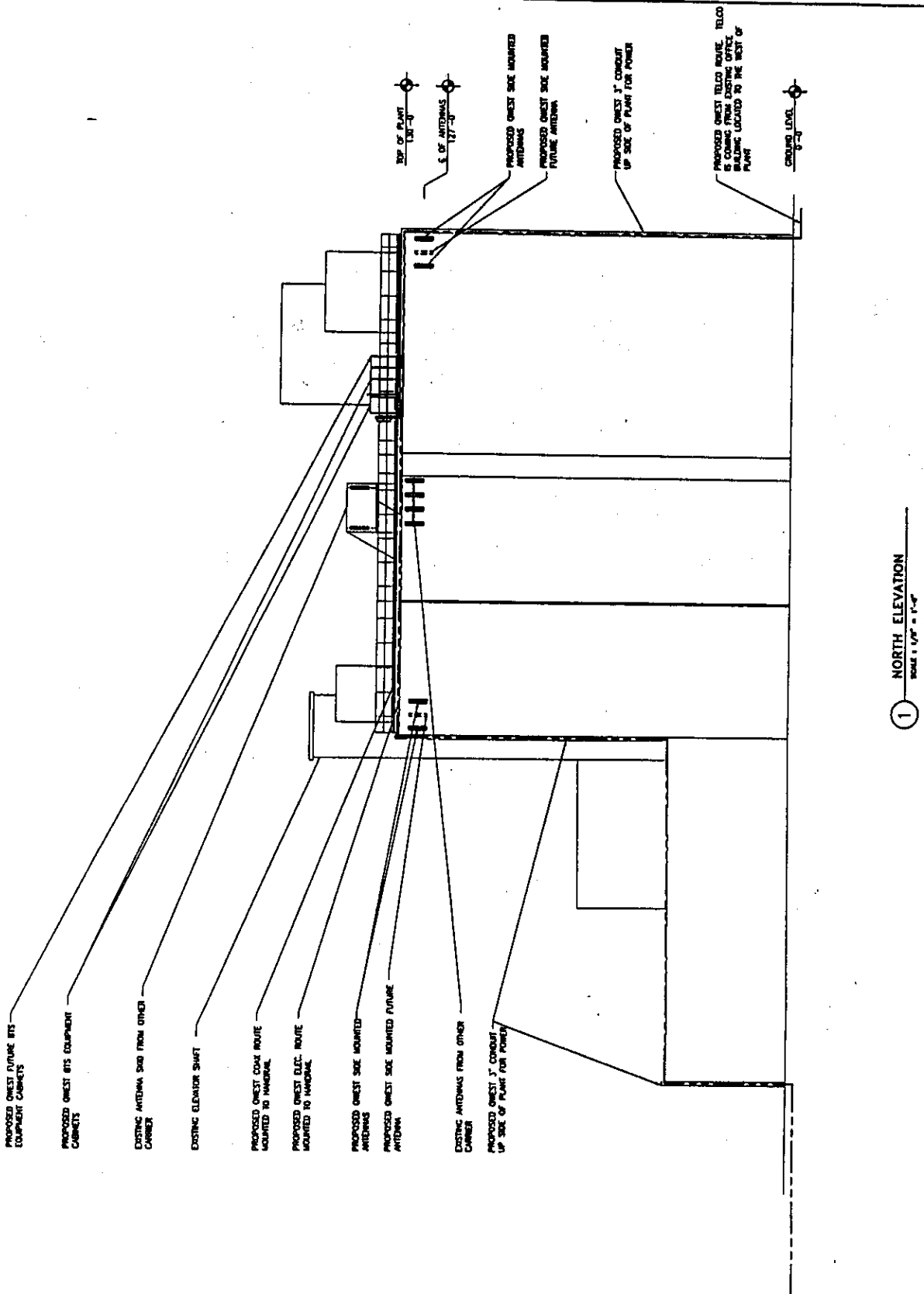
EXHIBIT B
(PAGE 2)

NO.	DATE	REVISION	BY	CHKD	APP'D
1		ISSUED FOR PERMIT	W	W	
2		ISSUED FOR BIDDING	W	W	
3					
4					
5					
6					
7					
8					
9					
10					

Qwest.
Wire

SITE INFORMATION CEMEX CEMENT 5134 15th HIGH 17000, COLOMBIA DR BLD-0211 DESIGN TYPE ROOF TOP EQUIP AND ANTENNAS SHEET TITLE ELEVATION SHEET NUMBER Z-3		R 0.00 D 0.00
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1 NORTH ELEVATION
 SCALE: 1/4" = 1'-0"

EXHIBIT B
 (PAGE 3)